

Yotta Acquisition Corporation
1185 Avenue of the Americas, Suite 301
New York, NY 10036

July 29, 2024

CONFIDENTIAL

Instinct Brothers Co., Ltd.
Japan

Attn: Mr. Tomoki Nagano

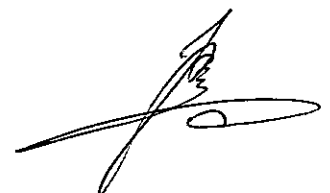
Re: Non-Binding Letter of Intent

Dear Mr. Tomoki Nagano,

This non-binding letter of intent (this "*LOI*") outlines the general terms and conditions of a potential business combination involving Yotta Corporation, a Delaware corporation (the "*SPAC*"), and Instinct Brothers Co., Ltd., a Japan corporation (together with its subsidiaries to the extent reasonably applicable, the "*Company*" or "*ISB*"). The proposed transaction between SPAC and the Company (the "*Transaction*") is intended to be on substantially the terms and conditions as set forth in Exhibit A hereto (the "*Term Sheet*").

1. No Commitment. This LOI is intended to express only a mutual indication of interest in the Transaction. No agreement providing for any Transaction or any other transaction or the participation by either party therein will be deemed to exist unless and until the Definitive Agreements (as defined below) have been executed and delivered by SPAC, the Company and each of the other parties thereto, if any. Unless and until the Definitive Agreements have been so executed and delivered, none of the parties shall have any legal obligation to any other party of any kind with respect to the Transaction, whether because of this LOI or any other written or oral expression with respect to the Transaction or otherwise, except, in the case of this paragraph and paragraphs 3 through 9 of this LOI, which shall be legally binding upon the parties (the "*Binding Matters*"). Each party reserves the right, in its sole discretion, to reject any and all proposals made by the other party or its affiliates or any of their respective officers, directors, employees, consultants, contractors, agents and financial and legal advisors (collectively with such affiliates, such party's "*Representatives*") with regard to its participation in the Transaction. Neither party will have (and each party hereby irrevocably waives) any claims against the other party or any of its Representatives arising out of or relating to the Transaction other than those, if any, that either such party may in the future have with respect to the Binding Matters and then only in accordance with the terms thereof, or as a party to the Definitive Agreements (if any) with the other party.

2. Definitive Agreements. The obligations of SPAC and the Company to consummate the Transaction are subject to and conditioned upon the negotiation and execution of a definitive agreement, including a purchase, share exchange, merger or other acquisition agreement (the "*Acquisition Agreement*") and other documents (collectively with the Acquisition Agreement, the "*Definitive Agreements*"), containing such terms and provisions



as are customarily included in documentation for a transaction of this nature and magnitude and as are otherwise agreed to by SPAC and the Company, including those in the Term Sheet. The closing of the Transaction contemplated hereby (the "**Closing**") will be subject to the satisfaction of all conditions precedent to Closing as identified in the Acquisition Agreement and as set forth on the attached Term Sheet.

3. Waiver Against Trust. The Company understands that SPAC has established a trust account (the "**Trust Account**") containing the proceeds of its initial public offering (the "**IPO**") and from certain private placements occurring simultaneously with the IPO (including interest accrued from time to time thereon) for the benefit of SPAC's public stockholders (the "**Public Stockholders**"), and that, except as otherwise described in the Prospectus, SPAC may disburse monies from the Trust Account only: (a) to the Public Stockholders in the event they elect to redeem their SPAC shares in connection with the consummation of SPAC's initial business combination (as such term is used in the Prospectus) (the "**Business Combination**") or in connection with an extension of its deadline to consummate a Business Combination, (b) to the Public Stockholders if SPAC fails to consummate a Business Combination within twelve (12) months from the closing of the IPO, (c) with respect to any interest earned on the amounts held in the Trust Account, amounts necessary to pay for any franchise or income taxes and up to \$50,000 of interest to pay dissolution expenses or (d) to SPAC after or concurrently with the consummation of a Business Combination. For and in consideration of SPAC entering into this Agreement and discussions with the Company regarding the Transaction (which may include a Business Combination), and for other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Company hereby agrees on behalf of itself and its affiliates that, notwithstanding anything to the contrary in this Agreement, neither the Company nor any of its affiliates do now or shall at any time hereafter have any right, title, interest or claim of any kind in or to any monies in the Trust Account or distributions therefrom, or make any claim against the Trust Account (including any distributions therefrom), regardless of whether such claim arises as a result of, in connection with or relating in any way to, this Agreement or any proposed or actual business relationship between itself and its affiliates hereby irrevocably waives any Released Claims that the Company or any of its affiliates may have against the Trust Account (including any distributions therefrom) now or in SPAC or its Representatives, on the one hand, and the Company or its Representatives, on the other hand, or any other matter, and regardless of whether such claim arises based on contract, tort, equity or any other theory of legal liability (collectively, the "**Released Claims**"). The Company on behalf of the future as a result of, or arising out of, any negotiations, contracts or agreements with SPAC or its Representatives and will not seek recourse against the Trust Account (including any distributions therefrom) for any reason whatsoever (including for an alleged breach of this Agreement or any other agreement with SPAC or its affiliates).

4. Confidentiality. The parties acknowledge and affirm the terms of the Confidentiality Agreement, dated as of July 17, 2024 (the "**NDA**"), between SPAC and the Company. The parties acknowledge and agree that the existence and terms of this LOI and the Transaction are strictly confidential in accordance with the terms of the NDA (provided, that they may be disclosed by SPAC to Significant Investors as and to the extent contemplated below). Except as required by applicable law, rule or regulation (including SEC and applicable stock exchange requirements) or any governmental, judicial, regulatory or supervisory authority having jurisdiction over such party or its Representatives, neither SPAC nor its Representatives, on the one hand, nor the Company nor its Representatives, on the other hand,



will make any public announcements relating to the Transaction without the prior written consent of the other party. The Company acknowledges that U.S. securities laws and other laws prohibit any person who has material, non-public information concerning a public company from purchasing or selling any of its securities, and from communicating such information to any person under circumstances in which it is reasonably foreseeable that such person is likely to purchase or sell such securities. The Company acknowledges that the confidentiality provisions of the NDA and this LOI shall be deemed to be an agreement to keep the confidential information of SPAC in confidence as contemplated by Regulation FD promulgated by the SEC. In addition, the Company acknowledges and agrees that some of the confidential information of SPAC (including this LOI) may be considered "material non-public information" for purposes of the federal securities laws, and SPAC and the Company agree to (and to cause each of their respective Representatives to) abide by all securities laws relating to the handling of and acting upon material non-public information regarding SPAC. Notwithstanding the foregoing, the parties each understands and acknowledges that after each party executes this LOI, SPAC and its Representatives or the Company and its Representatives may on a confidential basis share this LOI and certain confidential information about the other party with certain of its significant existing Public Stockholders, or in the case of the Company with its existing stockholders, and other selected potential investors (together, the "**Significant Investors**") in order to gauge their support of the Transaction and to seek equity financing (whether through a private placement, backstop arrangement or otherwise) in connection with the Transaction (the "**PIPE**"), and each party hereby consents to the foregoing and agrees to cooperate in a timely manner with, and provide reasonable support for, such efforts (including assisting with the preparation of marketing materials and financing disclosure documents and having its Chief Executive Officer and other senior management reasonably available to participate in conversations, presentations and meetings with Significant Investors). Each party will be responsible for any action taken by any Significant Investor that, were such Significant Investor a party to this LOI, would constitute a breach of this paragraph.

5. Exclusivity. Beginning on the date hereof and ending in forty-five (45) calendar days at 11:59 PM Eastern Time (the "**Exclusivity Period**") after the execution of this letter of intent (as may be extended for additional seven (7) business days as mutually agreed by the parties hereto) and (ii) the date that the Definitive Agreements are entered into (the "**Exclusive Period**"), each party represents and warrants to the other party that it will not, and will not authorize or permit any of its respective directors, officers, employees, shareholders or affiliates to, and it will use reasonable best efforts to cause its respective investment bankers, attorneys, accountants or other advisors or representatives (collectively, "**Representatives**") not to, directly or indirectly, (i) solicit, initiate or knowingly encourage any Alternative Proposal (as defined below), (ii) participate in any discussions or negotiations with, or furnish any non-public information to, any person (other than the other party hereto, any of its respective directors, officers, employees, shareholders, affiliates or Representatives, or sources of financing) with respect to any Alternative Proposal or (iii) enter into any agreement with respect to any Alternative Proposal (other than with the other party hereto, any of its directors, officers, employees, shareholders, affiliates or Representatives, or sources of financing). Each party further represents and warrants to the other party that its respective directors, officers, employees, shareholders and affiliates will, and will use its reasonable best efforts to cause its Representatives to, immediately cease all such discussions or negotiations (other than

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negotiations with the other party hereto) described in the immediately preceding sentence that are in progress (if any) as of the date hereof. The term "**Alternative Proposal**" means (i) with respect to the Company, proposal, transaction or offer by any person (other than SPAC or any of its affiliates) for any acquisition (whether by purchase of stock or assets or otherwise) of all or any material portion of the Company or any transaction involving a change in ownership, or a debt or equity financing, of the Company and (ii) with respect to SPAC, any proposal, transaction or offer by any person (other than the Company or any of its affiliates) concerning any transaction that would prohibit or impair the Transaction. Notwithstanding any provision of this Agreement to the contrary, nothing contained in this Agreement will restrict or prohibit the Company from entering into debt or equity financing of the Company prior to the consummation of the Transaction entered into for the purpose of funding the continuing operations of the Company. During the Exclusivity Period, each party will promptly (within 24 hours) notify the other if it becomes aware of any contact between any of its respective directors, officers, employees, shareholders, affiliates or Representatives, and any other person regarding any discussions, offers, proposals or related inquiries regarding an Alternative Proposal, and each party agrees that it will promptly advise the other of the material terms of any such Alternative Proposal.

6. Expenses. Whether or not the parties enter into Definitive Agreements with respect to the Transaction (but subject to the terms and conditions of the Definitive Agreements if the parties do enter into the Definitive Agreements), and except as otherwise provided herein, each of the parties hereto will pay its own costs and expenses (including legal, financial advisory, consulting and accounting fees and expenses) incurred at any time in connection with pursuing or consummating the Transaction.

7. Termination. This LOI can be terminated as follows: (i) by the mutual written agreement of the parties to terminate this LOI; (ii) by either party after the expiration of the Exclusivity Period. Except as otherwise set forth in such notice, any termination in accordance with this paragraph 7 shall be effective upon receipt of such written notice by the non-terminating party (the date of termination being the "**Termination Date**"). Upon termination of this LOI, this LOI will be deemed null, void and of no further force or effect, and all obligations and liabilities of the parties under this LOI or otherwise related to the Transaction will terminate, except for the respective continuing obligations of the parties relating to the Binding Matters, which will survive any termination of this LOI indefinitely (unless a lesser period is expressly contemplated by their terms). The termination of this LOI will not relieve any of the parties of liability for such party's pre-termination breach of any of the Binding Matters or any other agreement between the parties.

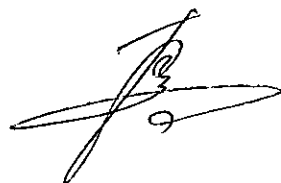
8. Governing Law; Jurisdiction; JURY TRIAL WAIVER. This LOI and the rights and obligations of the parties hereunder will be governed by and construed under and in accordance with the laws of the Singapore, without regard to any conflict of law rule or principle that would result in the application of any laws other than the laws of the State of Delaware. Each party hereby irrevocably and unconditionally submits, for itself and its property, to the exclusive jurisdiction of the Delaware Court of Chancery (and any appellate courts thereof) in any action or proceeding arising out of or relating to this LOI, and each of the parties hereby irrevocably and unconditionally (a) agrees not to commence any such action or proceeding except in such courts, (b) agrees that any claim in respect of any such action or proceeding may be heard and determined in such court, (c) waives, to the fullest extent it may

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legally and effectively do so, any objection which it may now or hereafter have to the laying of venue of any such action or proceeding in any such court, and (d) waives, to the fullest extent permitted by law, the defense of an inconvenient forum to the maintenance of such action or proceeding in any such court. Each party agrees that a final judgment in any such action or proceeding shall be conclusive and may be enforced in other jurisdictions by suit on the judgment or in any other manner provided by law. EACH PARTY HEREBY KNOWINGLY, VOLUNTARILY AND INTENTIONALLY IRREVOCABLY WAIVES THE RIGHT TO A TRIAL BY JURY IN RESPECT TO ANY LITIGATION, DISPUTE, CLAIM, LEGAL ACTION OR OTHER LEGAL PROCEEDING BASED HEREON, OR ARISING OUT OF, UNDER, OR IN CONNECTION WITH, THIS LOI.

9. **Miscellaneous.** This LOI supersedes any prior written or oral understanding or agreements between the parties related to the subject matter hereof (other than the NDA). This LOI may be amended, modified, waived or supplemented only by written agreement of the parties. No failure or delay in exercising any right, power or privilege hereunder will operate as a waiver thereof, nor will any single or partial exercise thereof preclude any other or further exercise thereof or the exercise of any right, power or privilege hereunder. The headings set forth in this LOI are for convenience of reference only and shall not be used in interpreting this LOI. In this LOI, the term: (x) "including" (and with correlative meaning "include") means including without limiting the generality of any description preceding or succeeding such term and shall be deemed in each case to be followed by the words "without limitation"; (y) "person" shall refer to any individual, corporation, partnership, trust, limited liability company or other entity or association, including any governmental or regulatory body, whether acting in an individual, fiduciary or any other capacity; and (z) "affiliate" shall mean, with respect to any specified person, any other person or group of persons acting together that, directly or indirectly, through one or more intermediaries controls, is controlled by or is under common control with such specified person (where the term "control" (and any correlative terms) means the possession, direct or indirect, of the power to direct or cause the direction of the management and policies of such person, whether through the ownership of voting securities, by contract or otherwise). This LOI may be executed in any number of counterparts (including by facsimile, pdf or other electronic document transmission), each of which shall be deemed to be an original, but all such counterparts shall together constitute one and the same instrument.

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Signature Page Follows}

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Please acknowledge your acceptance of and agreement to the foregoing by signing and returning to the undersigned as soon as possible a counterpart of this LOI.

Sincerely,

YOTTA ACQUISITION CORPORATION

By: _____
Name: Hui Chen
Title: Chief Executive Officer and Director

Accepted and agreed to by the undersigned on
behalf of itself and its subsidiaries and
affiliates as of this 19th day of July, 2024.

**INSTINCT BROTHERS CO., LTD. Brothers
Co., Ltd.**

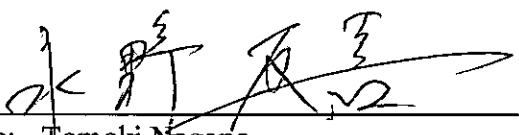
By: 
Name: Tomoki Nagano
Title: Chairman and Chief Executive Officer



Exhibit A – TERM SHEET

This Term Sheet is intended to set forth the material financial and business terms and conditions of the Transaction. However, all such terms and conditions are subject to further refinement and detail as the parties shall mutually agree, as shall be set forth in the Definitive Agreements. All capitalized terms used in this Term Sheet and not defined herein shall have the respective meanings ascribed to such terms in the letter of intent to which this Term Sheet is attached.

Transaction:	A business combination between the Company and SPAC pursuant to which SPAC will acquire 100% of the outstanding equity and equity equivalents of the Company (including options, warrants or other securities that have the right to acquire or convert into equity securities of the Company), or all of the Company's business, in exchange for the consideration described below (in whatever form as agreed by the parties, whether merger, consolidation, share exchange, asset purchase or otherwise, the "Acquisition"). The final deal structure will be determined by the parties based on the due diligence findings as well as business, legal, tax, accounting and other considerations, including the requirements of any U.S. or other applicable securities exchange. At the closing of the Acquisition (the "Closing"), SPAC will retain the "Instinct Brothers Co., Ltd." name for use by certain of its operating companies. The post-Closing Delaware entity is referred to as the "Surviving Company".			
Transaction Consideration:	Based on preliminary review, the SPAC and the Company agree to proceed with the Proposed Transaction based on a pre-money valuation of the Company at US\$100.00 million.			
Earn Out Shares	In addition to the Transaction Shares to be issued to the equity holders of the Company upon the Closing, the equity holders of the Company (including holders of options, warrants and other convertible securities) will be entitled to receive up to an additional 3,000,000 shares of common stock of the Surviving Company (the "Earn-Out Shares") based on achieving the following closing prices during any 20 out of a 30-trading day period prior to the date specified in the below schedule:			
	Milestone Date	12/31/2025	12/31/2026	12/31/2027
	Stock Price	\$16.50	\$20.00	\$25.00
	Earn Out Shares to ISB	1,000,000	1,000,000	1,000,000
Intended Tax Treatment:	The Transaction will be structured in a manner that is intended to be tax-free to the Company's existing shareholders, except with respect to any cash received.			



Fees and Expenses:	All transaction fees and expenses (including the SPAC deferred underwriting fees, PIPE fees, legal, accounting and other advisory fees to ensure research coverage, and SPAC and the Company's transaction expenses) shall be paid according to the proceeds allocation under "Use of Proceeds" below.
PIPE Offering:	SPAC will not be required to but may seek investors at the Company's request, including strategic investors, who will commit to purchase additional shares of common stock and/or preferred stock at the initial share price (\$10/share) in SPAC to be announced concurrently with the Transaction announcement (the "PIPE Offering"). Should it elect to do so, in connection with the marketing of the PIPE, the Company's management team will participate in roadshow presentations, and otherwise take all reasonable and customary actions requested by SPAC to assist in such efforts.
Use of Proceeds:	It will be a condition to Closing that aggregate cash available to the combined company from the SPAC IPO (net of redemptions), the PIPE Offering should one be pursued, and other sources will be used as follows: • First, to pay transaction fees and expenses (including deferred underwriting expenses from the SPAC IPO, deferred advisor fees, obligations owed to the Sponsor and all government and third parties fee); ISB retains the option to convert any outstanding SPAC liabilities into the common stock of ISB at the close of the Business Combination. • Second, to place cash on the balance sheet.
Lock-Up:	The Company stockholders will be required to subject their Transaction Shares to a lock-up for the following periods: with respect to Company Founders and the Company's management stockholders, 180 days; however, if the closing price of the shares of common stock equals or exceeds \$12.50 per share (as adjusted for stock splits, stock dividends, reorganizations, recapitalizations and the like) for any 20 trading days within any 30-trading day period commencing after our initial business combination, the shares will be immediately transferable. All Transaction Shares will be subject to all applicable holding periods and requirements under the Securities Act of 1933 and SEC rules.
Employment Arrangements:	Certain executives of the Company will be required to enter into mutually acceptable employment agreements with the Surviving Company, which will include customary confidentiality, non-compete and assignment of inventions and other customary restrictive covenant provisions.



Transaction Agreement:	The transaction agreement between SPAC and the Company (the "Transaction Agreement") will include customary public company representations and warranties expiring at Closing and no subsequent purchase price adjustments. The Transaction Agreement will contain no post-Closing indemnification obligations on the part of either party or any of its directors, officers or shareholders and none of the representations and warranties and pre-Closing covenants of the parties in the Transaction Agreement will survive the Closing. The Company will covenant that it will run in its customary ordinary course with approval needed for a customary list of certain material corporate actions, as mutually agreed by the parties. The Company, its shareholders and Sponsor will use reasonable best efforts in their collaboration on executing the Transaction including the preparation of filings, Transaction documentation and communication to investors. The Company, its shareholders and Sponsor and their respective counsel and advisors will use reasonable best efforts to file the S-4 and/or preliminary proxy statement, as applicable, as soon as practicable following announcement of the Acquisition (the "Proxy").
Closing Conditions:	The obligations of either party to consummate the transaction are subject to standard closing conditions for a transaction of this nature, including without limitation: (i) completion of any required stock exchange and regulatory review, including SEC/Nasdaq/NYSE, receipt of any required regulatory approvals and necessary third party approvals, and expiration of any waiting periods under HSR or other applicable anti-trust laws, (ii) approval by SPAC's and the Company's shareholders of the Acquisition and related matters, (iii) all of the outstanding options and warrants, and all other convertible securities of the Company, shall have been converted into equity of the Company or cancelled prior to or simultaneously with the closing of the Acquisition, and any rights to acquire equity of the Company will be extinguished as of the Closing, except in each case for those that the parties agree will be assumed by the Surviving Company, (iv) customary bring-down of reps and warranties and covenants of each of SPAC and the Company, (v) there shall have not been any material adverse change in the business of the Company, and (vi) the execution of all related agreements as contemplated by the Acquisition Agreement including lockup agreements, the Surviving Company incentive plan and employment agreements.



No Post- Closing Recourse:	The representations, warranties and pre-closing covenants set forth in the Transaction Agreement and the other definitive agreements will not survive the Closing, and there will be no post-closing indemnification or other recourse against either party or its direct or indirect stockholders in respect of such representations, warranties and pre-closing covenants. Each party will disclaim reliance on any representations and warranties other than those set forth in the Transaction Agreement and the other definitive agreements. The Transaction Consideration will not be subject to any escrow or holdback.
Board of Directors:	The board of directors of Surviving Company at the Closing will be comprised of (5) five members consisting of (i) four directors designated by the Company and (ii) one additional directors to be determined by the Company before Closing, who qualify as "independent" under applicable SEC and stock exchange rules.
Sponsor and SPAC Board Matters:	The Sponsor and its affiliates will enter into a support agreement, agreeing to (i) take all actions necessary to consummate the Acquisition, (ii) lock up their shares/warrants of the Surviving Company pursuant to the terms of the prospectus of the SPAC, and (iii) support the Acquisition until Closing or the liquidation of the SPAC. The Board of Directors of the SPAC will recommend, and submit, the Acquisition and the related transactions for approval by the SPAC stockholders and will not have the right to change such recommendation, unless material adverse facts arise during due diligence prior to the execution of the Definitive Agreements.
Registration Rights:	Sponsor and certain significant Company shareholders (i.e., holders that have 5% or more ownership at Closing and Company's officers and directors) (the "Major Company Shareholders") will enter into agreements with Surviving Company that will include: • Agreements to provide the Major Company Shareholders and Sponsor customary demand, piggyback and shelf registration rights; and • Lockup agreements as set forth above under "Lock-up"; however, if the closing price of the shares of common stock equals or exceeds \$12.50 per share (as adjusted for stock splits, stock dividends, reorganizations, recapitalizations and the like) for any 20 trading days within any 30-trading day period commencing after our initial business combination, the shares will be immediately transferable. The Surviving Company will use commercially reasonable efforts to file a shelf registration statement with respect to resales of the Transaction Shares and the PIPE shares within 30 days of Closing and will use its commercially reasonable efforts to cause such shelf registration statement to be declared effective by the SEC as soon as practicable after the filing thereof to facilitate sales of Transaction Shares after the expiration of the Lock-Up and sales of the PIPE shares.



Timing:	The parties anticipate signing the Acquisition Agreement and issuing a formal announcement thereof as soon as practicable following the negotiation of the Definitive Agreements, including the subscription agreements from the PIPE investors, should a PIPE be pursued.
Governing Law:	The Acquisition Agreement and other applicable Definitive Agreements will be governed by Singapore law and jurisdiction.

